College of Arts and Sciences

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MODULE 4 Feelings and Moral Decision Making

Introduction

"The happy life for a man is a life of the conscious following of a rule."

- Aristotle

In a classical moral dilemma, with D'Olimpio (2018) giving an example as you see a runaway train with five frightened people in it headed towards a cliff. They can be saved if you hit a switch and send the train onto another track where, unfortunately, another individual is standing who would be killed by the train's impact. What to do then? Most will say that it's worth sacrificing one life to save the other five. But suppose the death train can only be saved if you push a large person onto the tracks, where his body would stop the train but, he would be crushed to death. Although faced with the same result of five lives for one, a lot will say it would be wrong to stop the train this way.

This module will tackle the feelings and emotions as instinctive and trained response to moral dilemma and how it affects out decision makings. As the module progress, then it will guide us in making the right decisions.

Learning Outcomes

At the end of this module, students should be able to:

1. Explain the role of feelings in morality; and
2. Identify the factors to consider in making the right decisions;

Lesson 1. Feelings as instinctive and trained response to moral dilemma

Solomon (2019) defines “Emotions,” as written by Aristotle, “are all those feelings that so change men as to affect their judgements, and that are also attended by pain or pleasure. Such are anger, pity, fear and the like, with their opposites.” Emotion is indeed a heterogeneous category that encompasses a wide variety of important psychological phenomena. Some emotions are very specific, insofar as they concern a particular person, object, or situation. Others, such as distress, joy, or depression, are very general. Some emotions are very brief and barely conscious, such as a sudden flush of embarrassment or a burst of anger.

Figure 4.1 Emotions (2020)

Source: https://www.freepik.com/free-vector/illustration-young-people-with-differentemotions_5095713.htm#page=1&query=feelings&position=7

Emotions are an observable mental state. According to philosophers and psychologists, they are characterized by:

- A distinctive phenomenology
- A reaction of the nervous system

- A particular motor response
- An action tendencies or motivations
- A cognitive evaluation of what is calculated is the intended target, and the value assigned to it

Feelings as Instinctive Response to Moral Dilemmas

Pillemer (2021) explains that Ethics is subjected to one's feelings. It seen as necessary in ethical judgments as it is natural and a trained reaction to moral dilemmas. In a sense, reasons and emotions are not really one side of the coin. Both are instincts that are seen as having comparative roles in ethical thinking and decision making. Feelings or emotions are said to be opinions about the accomplishment of individual's purpose.

There are ethicists who consider that ethics is also an issue of emotion. They state that moral judgments must also be emotional. Feelings are viewed also as essential in ethical judgment as they are even considered as an instinctive and educated response to moral dilemmas. Emotions, it is thus assumed to be rational based on good judgments about how well a situation accomplishes appropriate objectives. Feelings are also instinctive by giving reasons to act morally. At most, ethical judgments are very much emotional as people express emotionally their strong satisfaction or dissatisfaction of various acts. Moral views emphasize the necessity for morality to be based also on compassion for other individual. Many ethicists conclude that to be moral involves both thinking and feeling.

Feelings as Obstacles to Making the Right Decisions

There are two theories that give focus on the role of feelings in morality: Ethical Subjectivism and Emotivism.

Ethical Subjectivism runs opposite to the principle that morality is objective or unbiased. The theory which is not about what is right and what is wrong. It also does not say how everyone should live or what moral norms everyone must practice. It is a theory regarding the nature of moral judgments. Although it acknowledges that moral judgments are general truth, Ethical Subjectivism affirms that the truth or falseness relies on the feelings, manners, or values of an individual or a group. Opposite to the idea that morality is about objective realities, this theory says that moral judgments define our personal emotions and beliefs. For debated ethical topic

like euthanasia, human genetics, homosexuality or abortion, we usually hear at least two differing opinions concerning the issue. One side could asserts that the action as immoral may voice out its stand by saying that God does not like it, or that it is immoral, or that the action must be punished by the law. The other camp may argue that the action is completely natural and the doers must be tolerated. But there is a third opinion that might say that the persons in the first two sides are just voicing out their respective view point on the issue, but where morality is involved, there are no objective facts and no position is objectively right. This is what Ethical Subjectivism is. It proposes that the moral judgments are based on the feelings and emotions. (BBC.com, n.d.)

Emotivism expresses that moral statements are pointless. It is no longer a view of ethics that has many followers and advocates. Like subjectivism it teaches that there are no objective moral facts, and that therefore killing is wrong can't be objectively true. Moral statements only voice the person's feelings about the matter. By expressing the individual's feelings about a moral issue, the statements may impact another person's opinions and behavior. Emotions create strong and obvious drivers of decision making. Throughout several kinds of decisions, essential regularities appear in the fundamental processes through which emotions impact decision and choice.

Franco and Sanches (2018) explains that emotions are created when the brain interprets what's going on around us through our memories, thoughts, and beliefs. This triggers how we feel and behave. All our decisions are influenced by this process in some way. For example, if you're feeling happy, you might decide to walk home via a sunny park. But if you'd been chased by a dog as a child, that same sunny park might trigger feelings of fear, and you'd take the bus instead. There may be logical arguments to be made either way, but in the moment, the decision is driven by your emotional state.

Different emotions effect decisions in different ways. If you're feeling sad, you might be more willing to settle for things that aren't in your favor, such as not putting yourself forward for promotion, or remaining in an unhealthy relationship. But sadness can also make you more generous — research shows that unhappy people are more likely to be in favor of increasing benefits to welfare recipients than angry people, who are lacking in empathy.

The effects of feelings are related to how people deal with them during decisions (Larsen, 2000). Emotions are important elements in decision-making. They also allow individuals to choose

one alternative or another and help them recognize traps in this process. Emotions should be included in formal decision models, as diverse studies have pointed out that emotions affect decision-making. Therefore, it is a consensus among researchers that emotions and feelings have a strong influence on decision-making (Damasio, 2018).

According to Schwartz (2018), values are criteria or goals that transcend specific situations. They are placed in order of importance, serving as principles that guide an individual's life and defining the concept of values as guides for selecting and evaluating actions, situations and people:

1. The emotional system is the primary motivational system for goal-directed behavior
2. Each specific emotion serves distinct motivational functions in goal striving
3. These motivational functions cannot be reduced to the overall valence of the specific emotions
4. The distinct motivational functions are rooted in the experiential qualities of the specific emotions
5. Emotions can be either endogenous (an integral part) or exogenous (environmentally invoked) to the goal striving process, their effect on behavior being contingent on their perceived relevance to the current goal.

Morin (2018) states that the best decisions are made when there's a careful balance between emotions and logic. When your emotions are running high, your logic will be low, which can lead to irrational decisions.

Here are four ways your emotions can cloud your judgment:

1. Excitement can cause you to overestimate your chances of success.

When you feel thrilled and excited about something, you are more likely to underestimate a risk.

2. Anxiety in one area of your life spills over into other areas.

If you're worried about something going on in your personal life, it can cause you to feel nervous. Anxiety over one specific problem can stay. When you're suffering nervousness, you

may reject to make change or you may try hard to make choices. As an end result, your thinking is most likely to be cloudy.

3. Feelings of sadness can cause you to settle.

Research proves you're likely to set your targets really low when you're feeling depressed. Researchers believe that sadness, sorrow and grief might led them to set the standards lower, in hopes that reaching their objective would enhance their feeling. Producing small expectations for yourself can avoid you from achieving your highest potential.

4. Anger and embarrassment can lead to taking a long shot.

Strong emotions can lead to careless judgments, if you're not cautious. Irritation and humiliation may make you very exposed to high-risk, low pay-off alternatives. Researchers believe deep unpleasant feelings weaken judgment skills. When you're feeling really sensitive, the consequences can become dangerous.

Balance Emotion and Logic

Emotions certainly play an important role in the decision making process. Anxiety can keep you from making a poor choice and boredom can ignite a spark that leads you to follow your passion. To make balanced choices, acknowledge your emotions. Pay attention to the way your feelings and recognize how those emotions may distort your thinking and influence your behavior.

Lesson 2. Decision Making (Making the right decision)

Emotional Impact on Judgment and Decision Making: Eight Major Themes

Lerner et al. (2018) in their paper Emotion and Decision Making, in surveying research on emotion and decision making, eight major themes of scientific inquiry emerged. The themes

reveal rapid progress in mapping the psychology of emotion and decision making. Collectively, they elucidate one overarching conclusion: emotions powerfully, predictably, and pervasively influence decision making.

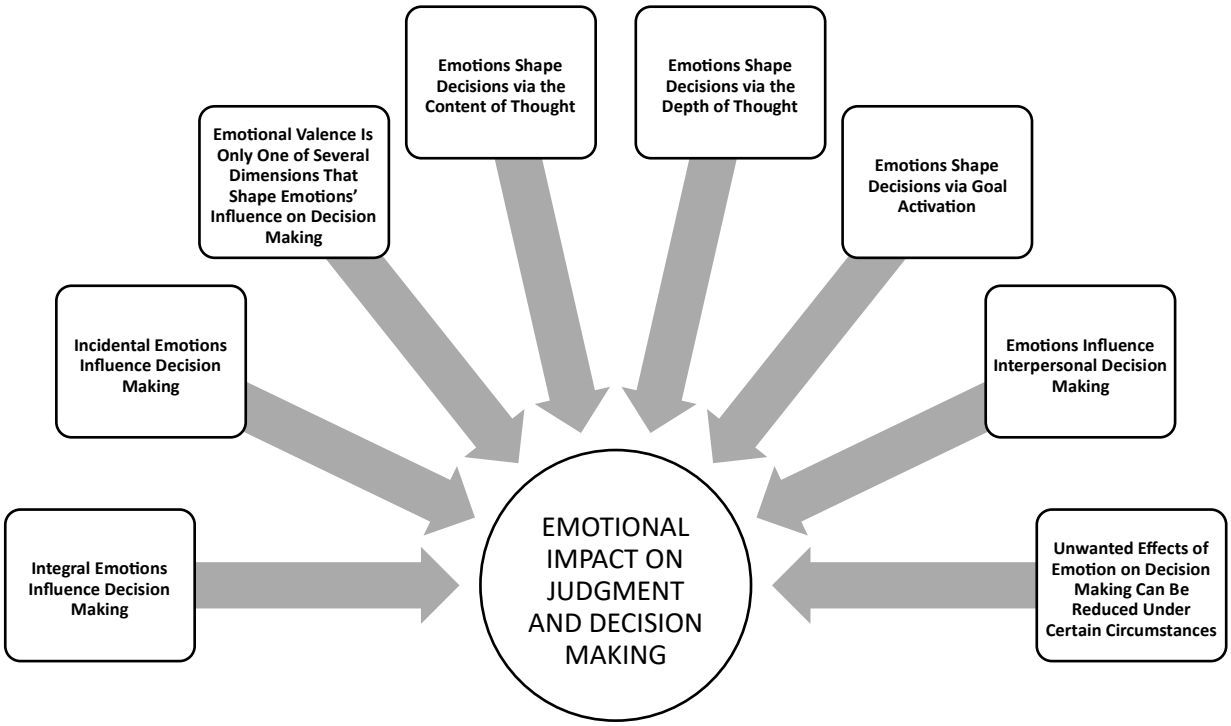

Figure 4.2 Emotional Impact on Judgment and Decision Making (2020)
Source: https://academic-accelerator.com/Impact-Factor-IF/Judgment-and-Decision-Making

Theme 1. Integral Emotions Influence Decision Making

It is useful to categorize different kinds of emotion. We could begin with emotions resulting from the decision or choice that firmly shapes decision making. For example, an individual who feels concerned about the possible result of a risky selection may prefer a secured choice rather than a possibly more productive option. An individual who feels appreciative to a university he graduated may make a decision to contribute and donate a hefty amount of money to that school.

Theme 2. Incidental Emotions Influence Decision Making

Scholars have discovered that minor emotions generally carry over from one event to the next, affecting decisions that should, from a normative perspective, be unrelated to that emotion,

a process known as the carryover of incidental emotion. For example, a rage sparked in one occurrence will certainly provokes a motive to blame others in other situations even if the targets of the rage have nothing to do with the source of that anger that was triggered. Furthermore, carryover of these kinds of incidental emotions normally occurs without awareness, especially of that person who had nothing to do with the first occurrence.

Theme 3. Emotional Valence Is Only One of Several Dimensions That Shape Emotions' Influence on Decision Making

Most works and readings on emotion has indirectly or clearly taken a valence-based approach revealing powerful and provocative effects for that dimension of emotion. Valence is the affective quality referring to the intrinsic attractiveness or goodness (positive valence) or averseness badness (negative valence) of an event, object or situation. But valence cannot give explanation for all effects on decision making. Although sensible, theories relying only on the valence justify less variation across results than would be perfect because they do not consider evidence that emotions of the same valence differ in vital ways. For example, emotions of the same valence, such as anger and sadness, are associated with facial expressions, and central nervous system response.

Theme 4. Emotions Shape Decisions via the Content of Thought

Founded on evidence that distinct feelings are linked with various forms of cognitive evaluation which are involve to a natural opportunity for linking discrete emotions where outcomes arise.

Theme 5. Emotions Shape Decisions via the Depth of Thought

Added to affecting the matter of thought, emotions also impact the depth of information processing connected to decision making. It proposes that, if emotions provide when a situation demands attention, then bad attitude should signal threat and therefore increase cautious, systematic processing. Also, positive mood should signal a secured and protected atmosphere and lead to more practical processing.

Theme 6. Emotions Shape Decisions via Goal Activation

Numerous academics have recommended that emotions serve an adaptive function, triggering a set of responses such as physiological, behavioral, experiential, and communication that empower a person to focus on challenges quickly. For instance, anger was related with the desire to alter the condition and move against another individual by attacking, harming, or being dominant on it.

Theme 7. Emotions Influence Interpersonal Decision Making

Emotions are integrally societal, and their adaptive function needs an awareness of their effect on interaction with partners. As a case of how complicated such impacts can be, individuals gain contentment from chances in assistance to others with no expectation in return.

Theme 8. Unwanted Effects of Emotion on Decision Making Can Be Reduced Under Certain Circumstances

Various approaches have been analyzed for lessening the impacts of emotions on decision making in circumstances where effects are seen as harmful. These strategies mostly take one of two forms: reducing the amount of the emotional reaction or protecting the decision process from the emotion.

Emotions and Decision-making

Fredrickson (2021) explained that there are numerous emotions, but we can generally divide them into two: the positive ones and the and negatives. Positive emotions are affection, care, sympathy, friendship, pleasure, love, contentment, satisfaction, and many others. Negative emotions are the opposites such as annoyance, hate, envy, greed, disappointment, resentment, jealousy and others. As the saying goes, we think with our brain, but we listen to our heart. Some persons are more sensitive than others and therefore, their choices and decisions are subjective. Feelings influence our reactions and decisions. These emotions are held responsible and accountable for our significant decisions for which in return, we may be sorry or triumphant based

on the result. The reality is, emotions do affect our decision. As emotions are an attached component of human nature, we cannot ignore them. As Dale Carnegie, American writer and lecturer, said “When dealing with people, remember you are not dealing with creatures of logic, but with the creatures of emotion.” Therefore, considering all the attributes of the dilemma, try to hold the emotions out of the decisions.

Furthermore, Khazan (2018) states that researchers have pinpointed numerous ways though which feelings and emotions can affect decision making. The significance of emotion for decision making is also evident in the reality that decision making is habitually an emotional means. Participating in thorough assessing of act regularly seems to be a cause of negative emotion. We have a tendency to assume complicated judgment only for crucial decisions. Emotions are also an end result after we have chosen how we acted on a given situation. After selecting and before the results are known we are in state stuck between optimism and anxiety. When the results happen, they may once again be a cause for emotion, either pleasure, amazement, disappointment and surprised.

These emotions affect how we assess our decision results, and therefore our welfare. When we have other people involved in our decisions, emotions such as compassion, affection, rage, embarrassment and conscience may be felt and play a vital role. All things considered, there is a numerous emotion that are linked to various phases of the decision-making process. We then suppose that there is a cause for feelings to be so widespread in all stages of decision making and they help us in making the right decision.

Damasio (2018) believed that there are numerous ways though which feelings and emotions can affect decision making First, scholars from several disciplines have suggested that affective reaction is a core driver of conscious attention and allocation of working memory, both of which are necessary for the extensive cognitive processes involved in decision making. Second, feelings can facilitate the decision-making processes involved in selecting and prioritizing choices relevant to situational requirements. One of the common dilemmas a decision maker faces is that potentially infinite factors and options surround every decision, each with conflicting advantages and disadvantages, making it extremely difficult or even impossible to make an

optimal decision within a given time frame. Finally, considerable evidence exists that momentary feelings influence how people process information during decision making, which in turn promotes decision-making effectiveness in particular contexts. For example, people in pleasant affective states tend to categorize stimuli in a broader, more inclusive, and more flexible fashion. In contrast, people in unpleasant affective states tend to engage in more effortful, systematic, piecemeal information processing which leads to effective decision making when decisions require accurate, unbiased, and realistic judgments or systematic execution of a structured decision protocol.

Assessment Task 4-1

Multiple Choice

Instruction:

Select the correct answer under each question.

1. Who said that, “The happy life for a man is a life of the conscious following of a rule?”
   A. Aristotle
   B. Fredrickson
   C. Franco
   D. Sanches
   E. Pillemer

2. Who defines emotions are those feelings that so change men as to affect their judgments and that are also attended by pain or pleasure?
   A. Solomon
   B. Aristotle
   C. Pillemer
   D. Lerner
   E. Franco

3. What heterogeneous category that encompasses a wide variety of important psychological phenomena?
    A. Emotions
    B. Feelings
    C. Ethics
    D. Values
    E. Dilemma

4. What are the observable mental state?
    A. Emotions
    B. Feelings
    C. Ethics
    D. Values
    E. Dilemma

5. Which are characterized by a distinctive phenomenology reaction of the nervous system according to philosophers and psychologists?
    A. Emotions
    B. Feelings
    C. Ethics
    D. Values
    E. Dilemma

6. Who explained that ethics is subjected to one's feelings?
    A. Pillemer
    B. Solomon
    C. Aristotle
    D. Merrican

E. Webster

7. What issues of emotion as considered by ethics?
    A. Ethicist
    B. Ethics
    C. Ethical
    D. Emotions
    E. Emotional

8. What ethical judgment is essential?
    A. Feelings
    B. Sadness
    C. Anxiety
    D. Excitement
    E. Happiness

9. What rational based on good judgments, how well a situation accomplishes appropriate objective?
    A. Emotions
    B. Feelings
    C. Emotional
    D. Love
    E. Hope

10. Which instructive reasons to act morally?
    A. Feelings
    B. Emotional
    C. Excitement
    D. Anxiety

E. Values

11. What emphasized the necessity for morality to be based also on compassion for other individual?
    A. Moral virtues
    B. Morally
    C. Emotions
    D. Feelings
    E. Emotional

12. Which runs opposite to the principle on morality to objective or unbiased?
    A. Ethical subjectivism
    B. Ethical emotivism
    C. Ethical
    D. Ethics
    E. Emotional

13. Which expressed that moral statements are pointless?
    A. Ethical emotivism
    B. Ethical subjectivism
    C. Emotional
    D. Emotions
    E. Emotionally

14. Which of the following has no objection on moral facts and that therefore killing is wrong can't be objectively true?
    A. Ethical emotivism
    B. Ethical subjectivism
    C. Emotional

D. Emotions

E. Emotionally

15. Who explained that emotions are created when the brain interprets what's going on around us through our memories, thoughts and beliefs?

    A. Franco and Sanches

    B. Franco

    C. Schwartz

    D. Aristotle

    E. Solomon

16. Who said that values are criteria or goals to transcend specific situation?

    A. Schwartz

    B. Franco

    C. Aristotle

    D. Solomon

    E. Sanches

17. What is the primary motivational system for goal-directed behavior?

    A. Emotional system

    B. Emotions

    C. System

    D. Feelings

    E. Values

18. Which can be either endogenous or exogenous to the goal striving process?

    A. Emotions

    B. Emotionally

    C. Emotional

D. Feelings

E. Cheerful

19. Which can cause you to overestimate your chances to success?

A. Excitement

B. Anxiety

C. Sadness

D. Emotions

E. Careless

20. Which can spill life over into other areas?

A. Anxiety

B. Anger

C. Love

D. Care

E. Excited

Assessment Task 4-2

True or False.

Instruction: Write True if the statement is correct and False is the statement is not correct.

1. Emotions are an observable mental state.
2. According to Pillemer Ethics is subjected to one's feelings.
3. Reasons and emotions are really one side of the coin.

4. Moral subjectivism runs opposite to the principle that morality is objective or unbiased.
5. Ethical subjective runs opposite to the principle that morality is objective or unbiased.
6. Emotivism expresses that moral statements are pointless.
7. Franco and Sanches explains that emotions are created where the brain interprets what's going on around us through our memories, thoughts and beliefs.
8. Different beliefs effect decisions in different ways.
9. The distinct motivational functions are rooted in the experiential qualities of the specific emotions.
10. Emotions are important elements in decision-making.
11. Morin stated that the best decisions are made when there's a careful balance between and logic.
12. Excitement over one specific problem can stay.
13. Strong emotions can lead to careless judgments.
14. Lerner et al that there are eight major themes of scientific inquiry emerged.
15. Valence is the affective quality referring to the intrinsic attractiveness goodness or averseness badness of an event, object or situation.

Assessment Task 4-3

Matching Type. Instruction: Match statements under letter A to letter B.

A	B
1. Ethics is subjected to one's feelings of sadness	a. Feelings
2. Observable mental state	b. Pillemer
3. Moral statements are pointless	c. Strong Emotions
	d. Emotions
	e. Anger and Embarrassment
	f. Ethical and Embarrassment
	g. Ethical emotivism

4. Morality is objective or unbiased
5. Emotions are created when the brain interpret
6. Values are criteria or goals that transcend and specific situations embarrassment
7. Primary motivational system for goal directed behavior
8. Endogenous or exogenous to the goal striving process
9. Causes to overestimate your chances of subjectivism success
10. Spills one area over into other area
11. Cause you to settle
12. Can lead to careless judgments
13. Can lead to taking a long shot
14. Eight major themes of scientific inquiry emerged
15. There are positive and negative emotions

h. Lerner et al
i. Ethical subjectivism
j. Franco Sanchez
k. Emotional system
l. Emotions
m. Excitement
n. Anxiety

Summary

Emotions are an observable mental state. According to philosophers and psychologists, they are characterized by: A distinctive phenomenology, a reaction of the nervous system, a particular motor response an action tendencies or motivations, a cognitive evaluation of what is calculated is the intended target, and the value assigned to it, There are two theories that give focus on the role of feelings in morality: Ethical Subjectivism and Emotivism. There are numerous emotions but we can generally divide them into two: the positive ones and the and negatives.

Research on emotion and decision making, eight major themes of scientific inquiry emerged. The themes reveal rapid progress in mapping the psychology of emotion and decision making. Collectively, they elucidate one overarching conclusion: emotions powerfully, predictably, and pervasively influence decision making.

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MODULE 5 Moral Reasoning and Moral Courage

Introduction

In this module, we will tackle the values and approaches to guide us in our ethical decision-making. Confronting our ethical dilemmas will lead us to think straighter and thus formulate the right decisions and have a clear and fair judgment of things or situations that worries us. Balancing the different factors and taking into consideration a lot of things will yield positive results because we have weighed what is wrong and what is right. These decision-making methods should make us have the right and informed decisions that will rationalize our thoughts, moves and acts.

Learning Outcomes

At the end of this module, students should be able to:

1. Define moral courage; and will
2. Explain the importance of moral courage;
3. Analyze the 7-step moral reasoning model; and
4. Explain the concept of developing the will.

Lesson 1. The 7-Step Moral Reasoning Model

Ethical decisions are determined by the individual and so as the manner that is used to settle ethical dilemmas. Although organized procedures for resolving ethical dilemmas suggest a rational style to the decision-making process, it is very unavoidable that the decisions will determine the final act. We are influenced by experiences, viewpoints, inclinations, reasons, behaviors, and thoughts. Through reflective thinking, we can understand our preferences and be aware to the ways in which these principles impact our ethical dilemmas. Having the knowledge on ethical standards that will be given importance amongst options can inform us about our own way or pattern of decision making. These lessons will question you, as learners and decision makers as to the your opinion on current ethical decisions as connected to other decisions you have made in the previous decisions or you are about to make (Jones, 2021).

Guides for Ethical Decision Making

It must never be judged an unconnected act that is rational or scientific by nature the ethical decision making on a daily practice. It is obvious that there are characteristics of decision making that involve analyzing the academic and professional skill to put into professional practices. The manner of ethical decision making includes the logical analysis of the dilemma by the decision maker himself. In this methodology, there are a lot of guides that offers practices to examine ethical dilemmas. These guide make an effort to make ethical decision making separate from the natural and toward the intellectual reasoning by giving step-by-step procedures to ethical decision making. These are efforts to change moral decisions from individual and a biased one, to remedy these judgments with rational accuracy. The aim is to develop an intellectual moral means by guaranteeing that judgments are attached to justification and are backed up by an intellectual foundation (Jones, 2021).

Recording and verification of the processes and methods utilized in producing a decision will be crucial to supporting an individual's action especially in front of a judge and jury. All too

often we are unaware with the responsibilities and have not enough or no preparation at all in the methodical assessment of ethical dilemmas.

According to Jones (2021), Ethical decision making deals with moral issues: A moral issue is present where ever individual actions, when freely performed, may harm or benefit others thus, the action or decision must have consequences for other people and involve choice on the part of the decision maker. A moral agent is the person who makes a moral decision. The status as a moral agent is defined by choices and their consequences for other people, but does not presuppose that a moral agent recognizes that moral issues are at stake. This is important to the model as the extent to which moral agents recognize moral issues constitute an outcome that the model seeks to explain (Jones, 2021).

The 7-STep Guide to Ethical Decision-Making

Having a strong and established set of ethical principles that will act as a model for ethical decision making is the safest way to prevent making the wrong choice. This set of ethics will not only answer every dilemma, but it be an easier way of life. For example, individuals will understand what to avoid, and what wrong acts to prevent. The initial phase in ethical decision making is to examine the fundamental ethical theories and understand the philosophy behind it. A better interpretation of these essential concepts will empower us to create choices when problems or anxieties arise.

We may play the part of mediator, as part of the decision making process, but it's probably not that frequent that they're thrust in the role of the decision maker himself. Also, there is nothing like a troubling ethical dilemma to make as anxious and questions every steps and decisions we make. Obviously, clouded decisions most likely and very often hinder the decision-making process.

The ethical decision-making framework developed by Dr. Michael Davis of the Illinois Institute of Technology is valuable in managing debates in case studies and thus, have an idea in having a right decision.

The following is a summary of the Seven-step guide to ethical decision-making (Davis,) and Rae (2018)

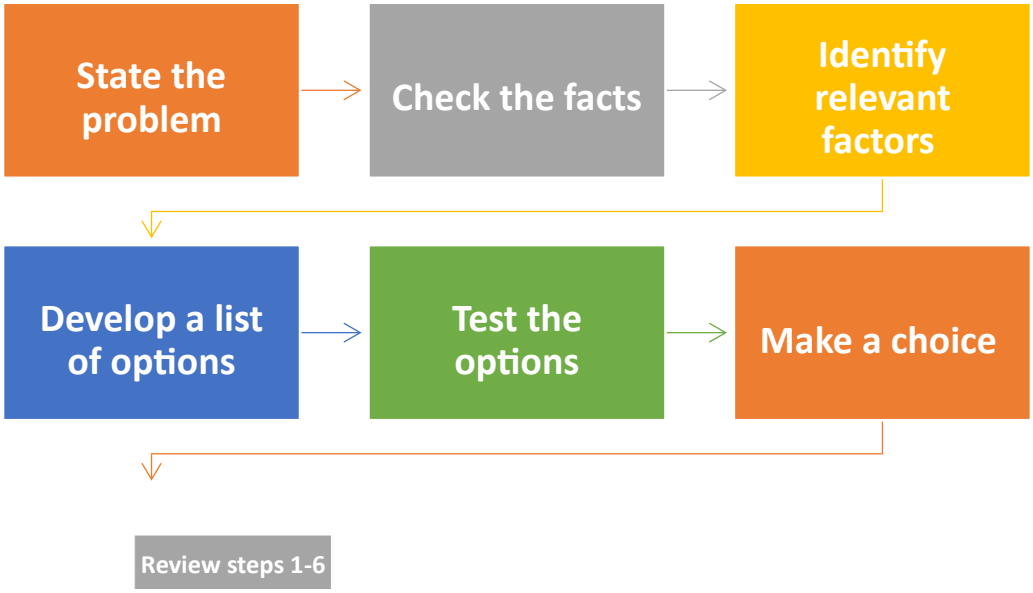

Figure 5.1 The Seven-Step Guide To Ethical Decision Making

1. State the problem.

The decision maker must be able to understand

- if there is a probable violation of an essential ethical theory or code, social regulation, or standards or policies
- if there are possible effects that should be prevented that could come from an act being studied to answer the dilemma

For instance, "there's something wrong about this judgment that gets me uneasy" or "will there be a conflict of interest on my part?”

2. Check the facts.

The decision maker should collect relevant information which seek out to collect as much data as possible about which rights are being sacrificed and to what extent. A significant emphasis would encourage the decision maker to make an effort to measure the extent and the amount of harm being caused to others.

3. Identify relevant factors (internal and external).

The decision maker must evaluate the Information. Once the evidence has been gathered, the decision maker must employ the use of assessment standard to assess the situation. The decision maker might use one of the prevalent ethics principles such as utilitarianism, rights, or justice.

4. Develop a list of options.

The decision maker must consider other alternatives. He needs to generate a set of probable action alternatives, for instance, questioning another individual's actions, pursuing a superior or anyone on the top management, and participating in and changing the course of what is occurring. The decision maker must be creative and innovative and make an effort to avoid dilemma.

5. Test the options.

The decision maker must pursue the action that is reinforced by the assessment standards used in Step 3. A decision maker chooses a way that is backed by all the ethics principles or other criteria applied in the decision- making process.

The decision maker could use some of the following tests as guide questions in the decision making process:

- harm test: Does this option do less harm than the alternatives?
- publicity test: Would I want my choice of this option published in the newspaper?
- defensibility test: Could I defend my choice of this option before a congressional committee or committee of peers?
- reversibility test: Would I still think this option was a good choice if I were adversely affected by it?
- colleague test: What do my colleagues say when I describe my problem and suggest this option as my solution?
- professional test: What might my profession's governing body for ethics say about this option?
- organization test: What does my company's ethics officer or legal counsel say about this?

6. Make a choice based on steps 1-5.

The decision maker must act or implement if pursuing to settle the problem being judged. Once the act have been resolved in Step 4 and the reaction is chosen in Step 5, the action is undertaken in Step 6.

7. Review steps 1-6. How can you reduce the likelihood that you will need to make a similar decision again?

The decision maker must review the Action. After the action has been undertaken and the outcomes are identified, he should evaluate the results of the action taken. If the best answer to the problem is not attained, the decision maker may require to revise and change the acts or consider other alternatives available or go back to the start of the decision-making process.

- Are there any cautions you can take as an individual (and announce your policy on question, job change, etc.)?
- Is there any way to have more support next time?
- Is there any way to change the organization (for example, suggest policy change at next departmental meeting)?

Lesson 2. Developing Moral Courage and Will

Webster dictionary defined courage as a mean mental or moral strength to resist opposition, danger, or hardship. It implies firmness of mind and will in the face of danger or extreme difficulty.

Here are the six types of courage according to Lion Whisker's blog(n.d.)

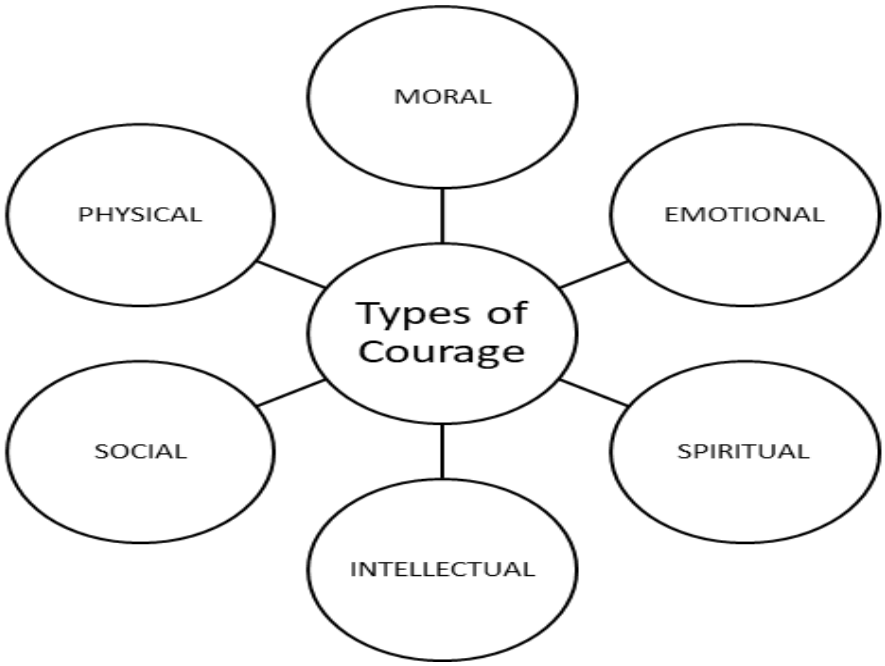

Figure 5.2 Types of Courage

Physical courage

Almost the basic definition of courage itself, this is what people come to have first in mind with regards to the concept because it involves bravery and could result to harm and even death because of sacrificing. Physical courage requires improving power, resiliency, and awareness.

Social courage

This is also very common and recognizable us because it includes the possibility of what we all experience in our lives with regards to social interactions such as being humiliated, discriminated, disliked or rejected. Overcoming all of these is a best example of social courage.

This type of courage also involves leadership because it is where we stand by what we believed in in front of those who opposes the idea, and thus, gaining followers.

Intellectual courage

This courage communicates to our commitment to participate with ideas and opinions that examines our belief. This has the possible danger of making errors and lapses in judgment if ever the facts and evidences will not be checked. Intellectual courage is a means of going against the flow of a particular belief or popular opinion for it involves discovering and informing the truth.

Emotional courage

The atmosphere of encouraging and optimistic emotions are the ones that this courage nurtures, at the threat of confronting the destructive and pessimistic feelings. Emotional courage is greatly associated with contentment and bliss.

Spiritual courage

This type of courage strengthens us when we struggle with our faith and religion in question. Our purpose in life, the faith in the unknown and the unseen and its significance to our lives is the general emphasis of spiritual courage.

Moral courage

As part of this course which will be given much more emphasis in this lesson, this type of courage involves doing what is morally upright , honorable, truthful, ethical, and fair in particular

when the threats involve disgrace, disapproval, or the disagreement with others. Through this we enter into ethics, the judgment to connect the idea and acti with morals and principles.

Moral courage according to Lachman (2021) is the individual's capacity to overcome fear and stand up for his or her core values. It is the willingness to speak out and do that which is right in the face of forces that would lead a person to act in some other way. It puts principles into action. Physical harm could be a threat in cases of moral courage; however, the more likely risks are humiliation, rejection, ridicule, unemployment, and loss of social standing. However, this personal, sacrifice often is accompanied by a sense of peace because the individual stood up for a non-negotiable principle. Moral courage enables individuals to admit to wrongdoing and ethical dilemmas steadfastly and self-confidently.

Lion Whisker's blog (n.d.) lists examples of what moral courage looks like and the lack of it.

Table 5.1 Morale Courage

Moral courage looks like	Lack of moral courage looks like
• helping someone push a car out of a snowbank, even if it means being late • standing up to a bully on the playground • picking up litter • doing homework or chores without being reminded • refusing to listen to or repeat gossip • practicing what you preach, even when no-one is looking or knows • turning in a toy or a wallet to the Lost and Found • a teen who calls home for a ride from a party where alcohol is being served • a teacher who gives all students an equal voice regardless of race, socioeconomic status, religion, gender or sexual orientation • a company whistle blower risking job loss, financial cost, and or legal repercussion • reporting a crime • participating in a peaceful protest	• walking away from someone in need • taking more than your fair share • laughing at someone's misfortune or accident • grabbing the spotlight from someone who has earned it • placing too much reliance on the letter rather than the spirit of the law • remaining silent in the face of wrongdoing or injustice • rationalizations or justifications for action/lack of action • being inconsistent or capricious with rules and standards for our children • choosing sides after seeing which way the wind is blowing • breaking a promise • lying or cheating

Definition of Will

Will, according to Merriam-Webster is the act, process, or experience of willing or volition, which is mental powers manifested as wishing, choosing, desiring, or intending or a disposition

to act according to principles or ends and the collective desire of a group the will of the people It is the power of control over one's own actions or emotions a man of iron will and something desired.

McCormick (2020) states that for Immanuel Kant, the will is the faculty of acting according to a conception of law. When we act, whether or not we achieve what we intend with our actions is often beyond our control, so the morality of our actions does not depend upon their outcome. What we can control, however, is the will behind the action. That is, we can will to act according to one law rather than another. The morality of an action, therefore, must be assessed in terms of the motivation behind it. If two people, Smith and Jones, perform the same act, from the same conception of the law, but events beyond Smith's control prevent her from achieving her goal, Smith is not less praiseworthy for not succeeding. We must consider them on equal moral ground in terms of the will behind their actions.

The only thing that is good without qualification is the good will, Kant says. All other candidates for an intrinsic good have problems, Kant argues. Courage, health, and wealth can all be used for ill purposes, Kant argues, and therefore cannot be intrinsically good. Happiness is not intrinsically good because even being worthy of happiness, Kant says, requires that one possess a good will. The good will is the only unconditional good despite all encroachments. Misfortune may render someone incapable of achieving her goals, for instance, but the goodness of her will remains.

Will is the capacity to act according to the principles provided by reason. Reason assumes freedom and conceives of principles of action in order to function.

Developing Will and Moral Courage

Mañebog (2020) cited five tips or suggestions on how to develop will and moral courage:

1. Develop and practice self-discipline.

To cultivate and put into practice self-discipline is one important way to improve moral courage and will. The idea of self-discipline requires the elimination of pleasure in favor of something worth much more. If this is applied to Ethics, this may mean to the surrendering the gratification or happiness for better purpose like having a good sensible and logical moral decision.

The development and enhancement of will and moral courage requires self-control to be developed. Cultivating the capability to be firm in decisions, thoughts, and actions are part of it which in return will take the lead to moral development and achievement. It involves giving your focusing your energy and strength on a your objectives and to continue until it is achieved.

2. Do mental strength training.

Under this method of mental strength training covers straying away to meet irrelevant and pointless desires. Although everyone is challenged by desires and impulses where numerous are irrelevant, by trying to reject to indulge on it, you become courageous and tougher.

Avoiding useless, damaging or pointless longings and conduct yourself opposite to negative habits, it strengthens and improve a person's focus. Constant routine of this as your strength grows, increases your courage.

3. Draw inspiration from people of great courage.

We give high regards to courageous people who have been successful by demonstrating self-discipline and will power. All people, no matter the status, who manifested will power and moral courage, overcome challenges, thus, improving their moral life and spiritual path are worthy to be emulated. Persons who put their security, welfare, and

reputation on the line for a cause or for an ideal that is worth more than personal wellbeing are a living proof of moral courage and will in action.

4. Repeatedly do acts that exhibit moral courage and will.

If one hopes to cultivate the moral courage and will within himself, he should put into practice and action and try hard doing the actions that demonstrate them every time there is a chance that allows it to happen.

5. Avoid deeds that show lack of moral courage and will.

This involves evading acts that show irresponsibility, cowardice, apathy, rashness, imprudence, ill will, and wickedness.

Assessment Task 5-1 True or False

Instruction: Write True if the statement is correct and False if the statement is incorrect.

1. Moral courage looks like laughing at someone's misfortune or accident.
2. According to Jones Ethical decision making deals with moral issues.
3. The safest way to prevent making the wrong choice is having a strong and established set of ethical principles.
4. Often hinder the decision-making process is the clouded decisions.
5. Whisker defined will as the power of control over's one actions and emotions.
6. The ethical decision-making framework developed by Dr. Michael Davis is valuable on managing debates in case studies.

7. The manner of ethical decision-making includes the logical analysis of the dilemma by the decision maker himself.
8. A moral agent is the person who makes a moral decision.
9. Set of ethics will not only answer every dilemma but it will be an easier way of life.
10. The decision maker must not evaluate the information.
11. The decision maker must be creative and innovative and make an effort to avoid dilemma.
12. The decision maker could use publicity test as guide questions in the decision making process.
13. The decision maker must review the action.
14. Moral courage implies firmness of mind and will in the face of danger or extreme difficulty.
15. There are seven types of courage according to Lion Whisker's blog.
16. Physical courage requires improving power, resiliency and awareness.
17. Social courage includes the possibility of what we all experience in our lives with regards to source interactions.
18. Intellectual courage communicates to our commitment to participate with ideas and opinions that examines our belief.
19. Emotional courage is greatly associated with contentment and bliss.
20. Moral courage strengthens us when we struggle with our faith and religion in question.
21. Moral courage involves doing what is morally upright, honorable etc.
22. Lachman states that moral courage is the individual's capacity to overcome fear and stand up for his/her core values.
23. Moral courage enables individuals to admit to wrongdoing and ethical dilemmas

steadfastly and self-confidently.

24. Moral courage looks like doing homework or chores without being reminded.

25. Moral courage looks like taking more than your fair share.

26. Immanuel Kant states that the will is the faculty of acting according to a conception of law.

27. According to Kant the only thing that is good without qualification is the good will.

28. Kant argues that courage, health and wealth can all be used for ill purposes.

29. Will is the capacity to act according to the principles provided by reason.

30. Manebog cited seven tips on how to develop will and moral courage.

Assessment Task 5-2

Matching Type

Instruction: Match the statement under letter A to letter B. Write only the letter.

A		B	
1.	Capacity to overcome fear	A.	Clouded decisions
2.	Ethical decision making deals with	B.	Ethical decisions
		C.	Will
3.	Power of control over one's over actions	D.	Moral issues
		E.	Moral courage

4. Used to settle ethical dilemmas
5. Hinder decision-making
6. Developed ethical decision-making framework
7. Evaluate the information
8. Courage is a mental or moral strength to resist opposition, danger or hardship
9. Strengthens us when we struggle with our faith and religion
10. Moral courage is the individuals capacity to overcome fear

F. Dr. Michael Davis
G. Decision-maker
H. Webster dictionary
I. Spiritual courage
J. Lachman
K. McCormick

Assessment Task 5-3

Multiple Choice

Instruction: Select the correct answer under/below each question. Write only the letter of the correct answer.

1. Who said that Ethical decision-making deals with moral issues?
    a. Jones
    b. Davis
    c. Rae
    d. Webster
    e. Dictionary

2. Who said that decision maker must be able to understand if there is a proven violation of an essential ethical theory or code, social regulation standards or policies?
    a. Lachman
    b. Dr. Michael Davis and Rae
    c. Jones
    d. Webster
    e. McCormick

3. Who defined courage as mental or moral strength to resist opposition, danger or hardship?
    a. Merriam
    b. McCormick
    c. Lion Whisker's blog
    d. Bloggers
    e. Webster

4. Who said that moral courage is the individuals capacity to overcome fear and stand up for his/her core values?
    a. Kant
    b. Webster
    c. Jones
    d. Lachman
    e. McCormick

5. Who said that will is the act, process or experience of willing or volition which is mental powers manifested?
    a. Webster
    b. Lachman
    c. Kant

d. Jones
e. Merriam-Webster

6. Who said that the only thing that is good without qualification is the good will?
    a. Dictionary
    b. Lachman
    c. Merriam
    d. Bloggers
    e. Immanuel Kant

7. Who said that Kant states the will is the faculty of acting according to a conception of law?
    a. Lion Whisker's Blog
    b. Blog
    c. Kant
    d. McCormick
    e. Webster

8. Who give tips/suggestions on how to develop will and moral courage?
    a. Jones
    b. Webster
    c. Manebog
    d. Kant
    e. Davis

9. Who said that moral issue is present where ever individual actions, when fully performed may harm or benefits others?
    a. Davis
    b. Jones
    c. Rae
    d. Manebog
    e. Blogger

10. Who said that ethical decision-making framework was developed by him, who is from Illinois Institute of technology?
    a. Mr. Michael Davis
    b. Manebog
    c. McCormick
    d. Merriam
    e. Lachman

Summary

Ethical decision making deals with moral issues: A moral issue is present where ever individual actions, when freely performed, may harm or benefit others.

The 7-STep Guide to Ethical Decision-Making is composed of the following: (1) State the problem, (2) Check the facts. (3) Identify relevant factors. (4) Develop a list of options (5) Test the options, (6) Make a choice based on steps 1-5, and (7) Review steps 1-6.

Moral courage is the individual's capacity to overcome fear and stand up for his or her core values. It is the willingness to speak out and do that which is right in the face of forces that would lead a person to act in some other way.

Will is the act, process, or experience of willing or volition, which is mental powers manifested as wishing, choosing, desiring, or intending or a disposition to act according to principles or ends and the collective desire of a group the will of the people It is the power of control over one's own actions or emotions a man of iron will and something desired.

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MODULE 6 Virtue Ethics

Introduction

Hursthouse and Pettigrove (2018), states that virtue is an exceptional trait of character. It is a nature, well rooted in its owner—something that, as we say, goes all the way down, to notice, expect, value, feel, desire, choose, act, and react in certain characteristic ways. To possess a virtue is to be a certain sort of person with a certain complex mindset. A significant aspect of this mindset is the wholehearted acceptance of a distinctive range of considerations as reasons for action. Once you have become virtuous you will know what the right action is, perform the right action because it is the right action.

In this module, we will be focusing on virtue ethics as perceived by two renowned personalities in this field, St. Thomas and Aristotle. Topics such as virtue as a habit and happiness as a virtue will be given emphasis under Aristotle while the natural law and happiness as fundamental of moral and cardinal values under St. Thomas.

Learning Outcomes

At the end of this module, students should be able to:

1. Explain the meaning of Virtue ethics;
2. Articulate what virtue ethics is;
3. Identify the theory of Aristotle and St. Tomas;
4. Critic Virtue Ethics; and
5. Make use of Virtue Ethics.

Lesson 1. Aristotle

Virtue Ethics

Virtue ethics is a philosophy developed by Aristotle and other ancient Greeks. It is the quest to understand and live a life of moral character. This character-based approach to morality assumes that we acquire virtue through practice. By practicing being honest, brave, just, generous, and so on, a person develops an honorable and moral character. According to Aristotle, by honing virtuous habits, people will likely make the right choice when faced with ethical challenges. (Ethics Unwrapped, n.d.)

Virtual Ethics is the approach to ethics that takes the notion of virtue (often conceived as excellence) as fundamental. Virtue ethics is primarily concerned with traits of character that are essential to human flourishing, not with the enumeration of duties. It falls somewhat outside the traditional dichotomy between deontological ethics and consequentialism: It agrees with consequentialism that the criterion of an action's being morally right or wrong lies in its relation to an end that has intrinsic value, but more closely resembles deontological ethics in its view that morally right actions are constitutive of the end itself and not mere instrumental means to the end. (The Editors of Encyclopedia Britannica, 2020)

Virtue ethics is currently one of three major approaches in normative ethics. It may, initially, be identified as the one that emphasizes the virtues, or moral character, in contrast to the approach that emphasizes duties or rules (deontology) or that emphasizes the consequences of actions (consequentialism). Suppose it is obvious that someone in need should be helped. A utilitarian will point to the fact that the costs of doing so will maximize well-being, a deontologist to the fact that, in doing so the agent will be acting in accordance with a moral rule such as "Do unto others as you would be done by" and a virtue ethicist to the fact that helping the person would be charitable. (Hursthouse, Rosalind and Glen Pettigrove, 2018)

An honest person's reasons and choices according to Sreenivasan (2020), with respect to honest and dishonest actions reflect her views about honesty, truth, and deception—but of course such views manifest themselves with respect to other actions, and to emotional reactions as well. Valuing honesty as she does, she chooses, where possible to work with honest people, to have honest friends, to bring up her children to be honest. She disapproves of, dislikes, deplores dishonesty, is not amused by certain tales of chicanery, despises or pities those who succeed through deception rather than thinking they have been clever, is unsurprised, or pleased (as appropriate) when honesty triumphs, is shocked or distressed when those near and dear to her do what is dishonest and so on. Given that a virtue is such a multi-track disposition, it would obviously be reckless to attribute one to an agent on the basis of a single observed action or even a series of similar actions, especially if you don't know the agent's reasons for doing as she did .

In his article in Varieties of Virtue Ethics, Oakley (2018) describes six claims that appear to be vital features of any virtue ethics approach including Aristotelian virtues, as follows:

(a) An action is right if and only if it is what an agent with a virtuous character would do in the circumstances;

(b) Goodness is prior to rightness;

(c) The virtues are irreducibly plural intrinsic goods;

(d) The virtues are objectively good;

(e) Some intrinsic goods are agent-relative;

(f) Acting rightly does not require that we maximize the good.

In his book Nicomachean Ethics, Aristotle as cited by Sachs (2020) list down a number of virtues (good habits) and their opposite vices (bad habits) that are critical for living a good life. For Aristotle, 'the list of virtues isn't a miscellaneous collection, but grounded in a general, reasoned account of what virtues are'. Given their role in human flourishing, Aristotle distinguished two basic sets of virtues (Figure 6.1), each of which has a number of certain virtues: intellectual virtues and moral virtues. Intellectual virtues concern the qualities of mind and are acquired by teaching, experience and time. These include scientific knowledge (episteme), artistic or technical knowledge (techne), intuitive reason (nous), practical wisdom (phronesis) and philosophic wisdom (sophia). On the other hand, moral (or ethical) virtues refer to the character traits (virtues of character) and enable us to become good people and thereby good social workers. These include: courage, temperance, self-discipline, moderation, modesty, humility, generosity, friendliness, truthfulness, honesty, justice. According to Aristotle, moral virtues are acquired by habit, while keeping them, requires human effort and hard work throughout life. Aristotle considered intellectual virtues as superior to moral virtues because they employ reason, though he recognized that both virtues are necessary for our well-being and happiness.

Table 1. Aristotle's virtues ethics.

Intellectual virtues	Moral virtues
Scientific knowledge (*episteme*), artistic or technical knowledge (*techne*), intuitive reason (*nous*), practical wisdom (*phronesis*), philosophic wisdom (*sophia*).	Courage, temperance, self-discipline, moderation, modesty, humility, generosity, friendliness, truthfulness, honesty, justice.

Figure 6.1. Aristotle's Virtue Ethics

Source: https://www.researchgate.net/publication/324679314_Aristotle's_virtue_ethics

Rachels and Rachels (2019) explained that virtue Ethics is often said to have two selling points.

1. Moral motivation. Virtue Ethics is appealing because it provides a natural and attractive account of moral motivation.
2. Doubts about the “ideal” of impartiality. A dominant theme in modern moral philosophy has been impartiality—the idea that all persons are morally equal, and that we should treat everyone’s interests as equally important.

The above authors also stated why Are the Virtues important. We said that virtues are traits of character that are good for people to have. This raises the question of why the virtues are good. Why should a person be courageous, generous, honest, or loyal? The answer may depend on the virtue in question. Thus:

- Courage is good because we need it to cope with danger.
- Generosity is desirable because there will always be people who need help.
- Honesty is needed because without it relations between people would go wrong in all sorts of ways.
- Loyalty is essential to friendship; friends stand by one another even when others would turn away.

Principles of Virtue Ethics

According to Ethics Guide (2018), Virtue ethics teaches:

- An action is only right if it is an action that a virtuous person would carry out in the same circumstances.
- A virtuous person is a person who acts virtuously
- A person acts virtuously if they "possess and live the virtues"
- A virtue is a moral characteristic that a person needs to live well.

Telos

Do you believe that everything has a purpose? Aristotle, the ancient Greek father of western philosophy, thought so, and he called that purpose, telos (pronounced ‘TELL-os’ or ‘TAYlos’). The word can mean ‘purpose,’ ‘intent,’ ‘end,’ or ‘goal,’ but as usual, Aristotle used it in a more specific and subtle sense—the inherent purpose of each thing, the ultimate reason for each thing being the way it is, whether created that way by human beings or nature.

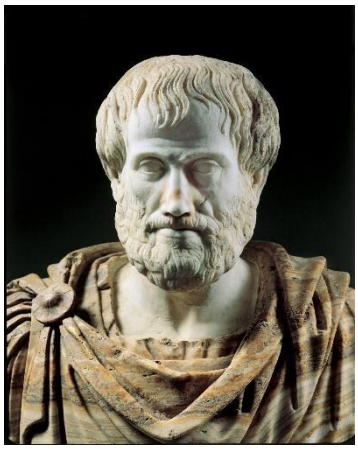

Figure 6.2 Aristotle (2020)

Source: https://www.britannica.com/biography/Aristotle#/media/1/34560/76426

Types of Telos

a. The telos of human artifacts: The purposes of human-created artifacts; i.e. books are for reading, chairs are for sitting, etc.
b. The telos of living things: The purposes of the natural features of living things; i.e. wings are for flying, ears are for hearing.
c. The telos of historical trends: The idea that historical processes have a telos became popular in the late 19th century, especially through Hegel's dialectic and Karl Marx's theories.
d. The telos of actions: Telos is a central concept in the philosophy of human actions; actions are only those behaviors which have a telos – those that are intentional; thus we hesitate to refer to accidental behaviors, such as tripping, as "actions." (Philosophy Terms: Telos, 2020)

The Internet Enclopedia of Philosophy (n.d.) defines the word telos as something like purpose, or goal, or final end. According to Aristotle, everything has a purpose or final end. If we want to understand what something is, it must be understood in terms of that end, which we can discover through careful study. It is perhaps easiest to understand what a telos is by looking first at objects created by human beings. Consider a knife. If you wanted to describe a knife, you would talk about its size, and its shape, and what it is made out of, among other things. But Aristotle believes that you would also, as part of your description, have to say that it is made to cut things. And when you did, you would be describing its telos.

The knife's purpose, or reason for existing, is to cut things. And Aristotle would say that unless you included that telos in your description, you wouldn't really have described – or understood – the knife. This is true not only of things made by humans, but of plants and animals as well.

Happiness as the Human TELOS

The ultimate aim (TELOS) of Human life is Happiness. Happiness, unlike money and wealth, is an ultimate aim because it is not "for" anything else. Everything we do, we do to be happy. Happiness has intrinsic value. Money only has instrumental value. We want it for what we can get with it.

The greatest Happiness (EUDAIMONIA) has three qualities that make it the ultimate aim or TELOS of all our actions:

- Happiness is desirable in itself.
- Happiness is not desirable because it brings other goods.
- All other goods are desirable because they lead to Happiness.

Duignan (2020) defined Eudaimonia, also spelled eudaemonia, in Aristotelian ethics, as the condition of human flourishing or of living well. The English translation of the ancient Greek term, "happiness," is unfortunate because eudaimonia, as Aristotle and most other ancient thinkers understood it, does not consist of a state of mind or a feeling of pleasure or satisfaction, as "happiness" suggests. For Aristotle, eudaimonia is the highest human good, the only human good that is desirable for its own sake rather than for the sake of something else.

Also, according to Aristotle, every living or human-made thing, including its parts, has a unique characteristic that separates it from all other things. The greatest good of a thing consists of the good performance of its function, and the virtue of a being contains of whatever qualities allow it to perform that function well. Aristotle considers that the characteristic function of human beings, that which separates them from all other things, is their capacity to reason.

Virtue as Habit

Hsieh (1997) states that Aristotle opens his conversation of virtue with the observation that, while intellectual virtue begins in teaching, "moral virtue comes about as a result of habit". The causal connection between good habits and virtue is made in two distinct ways. First, virtues are states of character, rather than passions or faculties, and states of character are created only through a process of habituation. Second, virtue

requires consistently good choices and a choosing of the action for its own sake. Because good habits give rise to consistent patterns of action and mold the passions to feel pleasure and pain rightly, they are instrumental in meeting these requirements of virtue. Thus the development of habits – particularly good habits -- is important to the Aristotelian good life at which virtue seeks. As Aristotle commented, "it makes no small difference, then, whether we form habits of one kind or another from our very youth; it makes a very great difference, or rather all the difference".

Aristotle considered that virtue as a habit makes an intentional choice when you begin. The habit of virtue is not yet formed, but over time one becomes used to acting virtuously and after a while one acts virtuously without needing to use choice. You have become virtuous—it's now part of you and how you act.

Habits as defined by Austin (2020) are often acquired by repetition, are more or less stable, are disposed toward some object or act, are good or bad, and add facility to operation. Different definitions emphasize different elements. For example, contemporary psychology defines habits as "learned dispositions to repeat past responses," showing an emphasis on their repetitive nature.

Happiness as Virtue

For Aristotle, however, happiness is a final end or goal that encompasses the totality of one's life. It is not something that can be gained or lost in a few hours, like pleasurable sensations. It is more like the ultimate value of your life as lived up to this moment, measuring how well you have lived up to your full potential as a human being. For this reason, one cannot really make any pronouncements about whether one has lived a happy life until it is over, just as we would not say of a football game that it was a "great game" at halftime (indeed we know of many such games that turn out to be blowouts or duds). For the same reason we cannot say that children are happy, anymore than we can say that an acorn is a tree, for the potential for a flourishing human life has not yet been realized. As Aristotle says, "for as it is not one swallow or one fine day that makes a spring, so it is not one day or a short time that makes a man blessed and happy." (Nichomachean Ethics,1098a18)

From what has been said, we can highlight the following features of Aristotle's theory of happiness:

- Happiness is the ultimate end and purpose of human existence
- Happiness is not pleasure, nor is it virtue. It is the exercise of virtue.
- Happiness cannot be achieved until the end of one's life. Hence it is a goal and not a temporary state.
- Happiness is the perfection of human nature. Since man is a rational animal,

human happiness depends on the exercise of his reason.

- Happiness depends on acquiring a moral character, where one displays the virtues of courage, generosity, justice, friendship, and citizenship in one's life. These virtues involve striking a balance or "mean" between an excess and a deficiency.
- Happiness requires intellectual contemplation, for this is the ultimate realization of our rational capacities. (Pursuit of Happiness, n.d.)

Pojman (2020) states that Aristotle thinks that most people will agree that the good for humans is happiness. As we've noted before, 'happiness' translates 'eudaimonia' which could also be translated as 'flourishing.' (The word is a compound of 'eu-' meaning 'good or well' and 'daimon' meaning 'a minor divinity'—or better, 'guardian spirit.') Someone is eudaimon when things are going really well for her. Happiness has several important features that seem to make it uniquely suited to be the supreme good. It is:

a) Final: it is chosen for its own sake.
b) Complete: It is aimed for purely as an end, and not also as a means or instrument to other things (Aristotle suggests that it is the only 'complete' end.)
c) Self-sufficient: A happy life lacks nothing.

Eudaimonia, as elaborated by Kraut (2019) is an inhumane conception of happiness: If someone is permanently handicapped, he cannot achieve eudaimonia. Therefore handicapped people should not be satisfied with their lives as they do not live up to the eudaimon standard, and should neither be, nor deemed, happy. Eudaimonia does not take into account one's limitations: it represents the ideal standard for any human being. On Kraut's view, the objectivist who holds eudaimonia to be the correct conception of happiness will see a large gap between the life a handicapped person leads and the life of the philosopher, and this objectivist will be committed to telling the handicapped person, even in the case where he is doing the best he can, that he should be unhappy with his life given how distant it is from the ideal of eudaimonia.

Lesson 2. St. Tomas: Natural Law

Merriam Webster dictionary (n.d.) defined courage as a mean mental or moral strength to resist opposition, danger, or hardship. It implies firmness of mind and will in the face of danger or extreme difficulty.

The Natural Law and Its Tenets

St. Thomas Aquinas, Italian San Tommaso d'Aquino, also called Aquinas, byname Doctor Angelicus (Latin: "Angelic Doctor"), (born 1224/25, Roccasecca, near Aquino, Terra di Lavoro, Kingdom of Sicily [Italy]—died March 7, 1274, Fossanova, near Terracina, Latium, Papal States; canonized July 18, 1323; feast day January 28, formerly March 7), Italian Dominican theologian, the foremost medieval Scholastic. He developed his own conclusions from Aristotelian premises, notably in the metaphysics of personality, creation, and Providence. As a theologian, he was responsible in his two masterpieces, the Summa theologiae and the Summa contra gentiles, for the classical systematization of Latin theology, and, as a poet, he wrote some of the most gravely beautiful Eucharistic hymns in the church's liturgy. His doctrinal system and the explanations and developments made by his followers are known as Thomism. Although many modern Roman Catholic theologians do not find St. Thomas altogether congenial, he is nevertheless recognized by the Roman Catholic Church as its foremost Western philosopher and theologian (Mark, 2020).

After completing his education, Saint Thomas Aquinas devoted himself to a life of traveling, writing, teaching, public speaking and preaching. Religious institutions and universities alike yearned to benefit from the wisdom of "The Christian Apostle."

At the forefront of medieval thought was a struggle to reconcile the relationship between theology (faith) and philosophy (reason). People were at odds as to how to unite the knowledge they obtained through revelation with the information they observed naturally using their mind and their senses. Based on Averroes' "theory of the double truth," the two types of knowledge were in direct opposition to each other. Saint Thomas Aquinas's revolutionary views rejected Averroes' theory, asserting that "both kinds of knowledge ultimately come from God" and were therefore compatible (Mark, 2020).

Not only were they compatible, according to Thomas's ideology, but they could also work in collaboration: He believed that revelation could guide reason and prevent it from making mistakes, while reason could clarify and demystify faith. Saint Thomas Aquinas's work goes on to discuss faith and reason's roles in both perceiving and proving the existence of God.

Figure 6.3 Saint Thomas Aquinas

'Natural law theory' is a label that has been applied to theories of ethics, theories of politics, theories of civil law, and theories of religious morality. We will be concerned only with natural law theories of ethics: while such views arguably have some interesting implications for law, politics, and religious morality, these implications will not be our focus here (Mark, 2010).

The term "natural law" is ambiguous. It refers to a type of moral theory, as well as to a type of legal theory, but the core claims of the two kinds of theory are logically independent. It does not refer to the laws of nature, the laws that science aims to describe. According to natural law moral theory, the moral standards that govern human behavior are, in some sense, objectively derived from the nature of human beings and the nature of the world. While being logically independent of natural law legal theory, the two theories intersect. However, the majority of the article will focus on natural law legal theory.

Two Kinds of Natural Law Theory (Himma, n.d.)

At the outset, it is important to distinguish two kinds of theory that go by the name of natural law. The first is a theory of morality that is roughly characterized by the following theses. First, moral propositions have what is sometimes called objective standing in the sense that such propositions are the bearers of objective truth-value; that is, moral propositions can be objectively true or false. Though moral objectivism is sometimes equated with moral realism (see, e.g., Moore 1992, 190: "the truth of any moral proposition lies in its correspondence with a mind- and convention-independent moral reality"), the relationship between the two theories is controversial. Geoffrey Sayre-McCord (1988), for example, views moral objectivism as one species of moral realism, but not the only form; on Sayre-McCord's view, moral subjectivism and moral

intersubjectivism are also forms of moral realism. Strictly speaking, then, natural law moral theory is committed only to the objectivity of moral norms.

The second thesis constituting the core of natural law moral theory is the claim that standards of morality are in some sense derived from, or entailed by, the nature of the world and the nature of human beings. St. Thomas Aquinas, for example, identifies the rational nature of human beings as that which defines moral law: “the rule and measure of human acts is the reason, which is the first principle of human acts” (Aquinas, ST I-II, Q.90, A.I). On this common view, since human beings are by nature rational beings, it is morally appropriate that they should behave in a way that conforms to their rational nature. Thus, Aquinas derives the moral law from the nature of human beings (thus, “natural law”).

To say that law must have a certain moral content in order to be valid is to say that we cannot identify something as genuine law by its history, form or structure alone; we must look also to its content to determine whether it is law. For most natural law theorists, this requirement takes the form of providing necessary conditions of law: for something to be a valid law, it is necessary, though not sufficient, that it be aimed at the common good and that it be just. That is, it is enough to make a law invalid that it aims at something contrary to the common good or unjust. Thus, the view that ‘an unjust law is no law at all’ has come to be one of the defining tenets of the natural law position. The claim that a directive which is immoral or unjust cannot be a genuine law has been a source of considerable controversy, both as to its precise meaning and its truth. Both its meaning and its plausibility can be understood, however, if one takes notice of a different feature of the natural lawyer’s position. Thinkers in the natural law tradition believe that genuine laws impose a moral obligation of obedience upon those to whom they apply.

We have a moral obligation to obey the law because of its independent moral rightness. This moral obligation to obey the law must be distinguished from any prudential reason we have to obey the law, such as the desire to avoid punishment. While the latter may hold even with respect to ‘unjust laws’, the former holds only because the law, as genuine law, enjoins what we morally ought to do. Thus the claim that ‘unjust laws’ are not genuine laws is based upon the assumption that we are morally obligated to obey genuine laws. If a ‘law’ is seriously immoral or unjust, not only do we not have a general 3 moral obligation to obey it; to obey it might even be morally wrong. Thus such ‘laws’ must not be genuine laws after all. We take our example of traditional natural law theory from St. Thomas Aquinas, whose writings on law provide our first reading. Modern natural law theorists offer quite different accounts than does Aquinas; some of these are presented later in the book. St. Thomas Aquinas (c.1225–1275) was a Dominican monk who wrote extensively on both theological and secular topics, including law, morality, and politics. Of

particular interest forus are his writings on law, which come from his greatest work, Summa Theologica.

The following excerpt from Summa Theologica is quite challenging for students first embarking on the study of the philosophy of law. The effort is worthwhile, I believe, because Aquinas identifies and discusses in the following passages many questions that have dominated jurisprudence from his time to ours. The difficulty of the readings is due in part to the nature of the subject, which will be new to most readers, and in part to the differences in expression that Aquinas used compared to those that we would use today. Aquinas organizes his thought in terms of a number of central Questions that he will address. Many of these are further divided into Articles or sub-questions. To assist the reader in understanding Aquinas, I offer introductory comments before each Question. These comments provide an overview of the topic to be addressed in the Question and an indication of how each Question relates to the central themes identified in the Introduction as the organizing themes of this book. They also identify the central themes that have come to characterize the traditional natural law theory. My comments are given in italicized print at the beginning of each Question. Finally, I have taken the liberty of changing the order of many Questions and Articles so as to present a more linear statement of Aquinas's thought.

Human Law (Dimock, 2019)

Human law is the interpretation of natural law in different contexts (ST II.I.95-97). Like Aristotle, Aquinas believed that just laws relate to the species, so the collective good comes before the individual good – although in a just society, these are not in conflict. This means that law is not about individual morality, and individual vices should only be legislated against when they threaten harm to others. Unlike Aristotle, Aquinas believed that an informed conscience takes precedence over law. No individual should obey a law that he or she believes to be unjust, because laws that violate reason are not laws. Moreover, laws must have sufficient flexibility to be waived when necessary in the interests of the common good.

Natural law supports different cultures and religions, but unjust societies are those whose laws violate natural law. Modern thinkers who appeal to natural law as a foundation for morality often lose sight of Aquinas's naturalism, presenting it as a transcendent rational capacity or divine command that overrides our natural instincts and desires. This manifests itself in the rationalist quest to conquer nature (now redounding on us in a looming environmental catastrophe), and in the Catholic church's attempt to use politics and law to impose its views on sexuality over and against changing social customs.

Aquinas argues that laws should change to reflect customs (although custom cannot

change natural or divine law). I'll focus on two issues relating to this in terms of a widening gulf between the Catholic hierarchy and modern culture, including many Catholics.

Kinds of Law (Dimock, 2019)

Aquinas recognizes four main kinds of law: the eternal, the natural, the human, and the divine. The last three all depend on the first, but in different ways. Were we to arrange them in a hierarchy, eternal would be at the top, then natural, then human. Divine law is not in conflict with natural law, but it reaches human beings by a different route, revelation.

Eternal Law

Eternal law is identical to the mind of God as seen by God himself. It can be called law because God stands to the universe which he creates as a ruler does to a community which he rules. When God's reason is considered as it is understood by God Himself, i.e. in its unchanging, eternal nature (q91, a1) , it is eternal law.

Divine Law

Divine law is derived from eternal law as it appears historically to humans, especially through revelation, i.e., when it appears to human beings as divine commands. Divine law is divided into the Old Law and the New Law (q91, a5). The Old and New Law roughly corresponding to the Old and New Testaments of the Bible. When he speaks of the Old Law, Thomas is thinking mainly of the Ten Commandments. When he speaks of the New Law, the teachings of Jesus.

Old Law -- commands conduct externally -- reaches humans through their capacity for fear -- Law promised earthly rewards (social peace and its benefits)

New Law -- commands internal conduct -- reaches humans by the example of divine love -- promises heavenly reward

Human Law

Thomas' philosophy, as we should expect knowing how much he is indebted to Aristotle, is pervaded with a sense of teleology. Nowhere is this clearer and more important than in his discussion of human law. You might think here that he would define human law as what we sometimes nowadays call positive law, the laws actually enacted and put in force in our human communities. But in fact human law fits just those so-called positive laws which are what written

and enacted laws should be. So-called laws which fall short of what they should be are not true laws at all, according to Thomas. (Cf. q95, a2, p. 59)

Law is directed to the common good, and human law is no exception. The promotion of virtue is necessary for the common good, and human laws are instruments in the promotion of virtue. Aristotle already pointed out that most people are kept from crime by fear of the law. Thomas accepts this judgment, suggesting (r. Ad 1, p. 57) that by coercion even men who are evilly disposed may be led in the direction of virtue.

Laws are also important, says Thomas, for other reasons noted by Aristotle.

(1) It is easier to find a few wise persons who can make good laws than to find many who, in the absence of laws, can judge correctly in each instance.
(2) Lawmakers can deliberate at length before making laws while many particular cases must be judged quickly, when they arise.
(3) Lawmakers judge in the abstract and are less likely to be swayed by emotions evoked by concrete circumstances or by the kinds of things that tend to corruption.
(4) There is less danger of perversion of law, which is formulated in general, than there would be perversion of judgment in particular cases where no law exists to guide judgment.

Assessment Task 6-1

Matching Type. Instruction: Match the statements under letter A to letter B

A	B
1. Customary belief, social forms, religious and materials traits	A. Critical cultural relativism
2. Produced kind and/or fair outcomes	B. Loob
3. Process through which a human person gain his beliefs, skills and dispositions	C. Inside
4. The idea that a person's beliefs, values and practices should be understood	D. Kapwa
5. Cultures must and should not be questioned by outsiders	E. Together with the person
6. Raise questions about cultural practices	F. Culture
7. Better translated as relational will	G. Moral behavior
8. Loob literally translated into English	H. Moral development
9. Literally translated as other person	I. Cultural relativism
10. Kapwa is better understood in English	J. Absolute cultural relativism
11. Labeled as welcoming, friendly, easily insulted and many other adjective	K. Filipino
12. Relaxed attitude but poor time management of the Filipino	L. Lack of discipline
	M. Extreme family
	N. Extreme personalism
	O. Ability to survive
	P. Flexibility
	Q. Passivity
	R. Kanya-kanya syndrome
	S. Colonial mentality
	T. Faith and religiosity

13. Strong family protection for either good or bad condition
14. Always trying to give personal interpretation to actions
15. Filipino will do anything to survive
16. Foundation of the Filipino culture
17. Internalized attitude of ethics or cultural inferiority and lack of initiative
18. Serving-serving arrogance that generates feeling of jealousy
19. Strong reliance to others fate which is a Filipino trademark
20. Filipinos re quick to adapt to changes

Assessment Task 6-2

Multiple Choice

Instruction: Select the correct answer under each question.

1. Which of the following is the correct answer, Filipino have a cheery and positive approach to life and its up and down?
    a. Joy and humor
    b. Love and care
    c. Happiness and sadness
    d. Friendly and lovely
    e. Kind and honest

2. Which of the following is the correct answer, genuine and deep love for family?
    a. Family orientation
    b. School orientation
    c. Church orientation
    d. Society orientation
    e. Friend orientation

3. Which shows the capacity for hard work given to raise one's standard living of decent life for one's family?
    a. Hard work and industry
    b. Hard work and timely
    c. Initiative
    d. Patience
    e. Industrious
4. Which refers to the process through which a human gains his beliefs?
    a. Moral development
    b. Moral dilemma
    c. Morality
    d. Moral and emotion
    e. Moral and feelings
5. What makes Filipino quick to adopt to changes?
    a. Ability to survive
    b. Ability to speak
    c. Ability to write
    d. Ability to walk
    e. Ability to travel
6. Where our faith in God, is reflected in our mantra?
    a. Bahala na
    b. Tama na
    c. Ayoko na
    d. Saka na
    e. Suko na

7. Which gives us a strong will or pampalakas-loob?
    a. Bathala
    b. Paraluman
    c. Pangulo
    d. Diwata
    e. Hari

8. Who is most hospitable people and will do everything to please visitors?
    a. Filipinos
    b. Japanese
    c. Americans
    d. Spaniards
    e. Malaysians

9. Which is the correct answer, opening yourself to others and feel one with others with dignity and reflect deal with them as fellow human beings?
    a. Pakikipagkapwa-tao
    b. Pakikisangkot
    c. Pakikibahagi
    d. Pakikiramay
    e. Pakikibaka

10. Who have durable sense of family and community?
    a. Filipino society
    b. American society
    c. Indian society
    d. Singaporean society
    e. Indonesian society

11. Who is happy-go-lucky people who are often pessimistic about today but always optimistic that tomorrow will be better?
    a. Filipinos
    b. Japanese
    c. Vietnamese

d. Indonesians
e. Americans

12. Who gave us the personal and family honor that we valued, as well as dignity and pride?
    a. Eastern influence
    b. Western influence
    c. Southern influence
    d. Northern influence
    e. South-east influence

13. Who have mixed character and pride?
    a. Filipinos
    b. Japanese
    c. Vietnamese
    d. Indonesians
    e. Malaysians

14. What articulated and organized through a dialogue with Aristotelism-Thomistic virtue values?
    a. Filipinos Virtue Ethics
    b. American Virtue Ethics
    c. Eastern Virtue Ethics
    d. Western Virtue Ethics
    e. Spaniards Virtue Ethics

15. Which refers to not judging a culture to our own standards of what is right or wrong, strange or normal?
    a. Cultural relativism
    b. Culture
    c. Feelings
    d. Emotions
    e. Behaviors

Assessment Task 6-3

True or False

Instruction: Write True if the statement is correct and write False if the statement is not correct.

	1. Moral development is fundamentally rooted in the very experience of a person in his relationship with others.
	2. Culture is explained by Baring as the integrated pattern of human knowledge, beliefs and behaviors.
	3.Taylor define moral behavior as acts intended to produce kind and/or fain outcomes.
	4. Merriam Webster defined culture as the customary beliefs, social forms, and materials traits of radical religious or social group.
	5. Behavior is an individualistic, man-made idea of aggregate character that is available for subjectivity.
	6. Culture is an individualistic, man-made idea of aggregate character
	7. The study of culture today reaches for beyond differences in outward appearance.
	8. Outward appearance is only a small part of the diversity of human beings.
	9. Culture is also the characteristic features of everyday existence.
	10. Moral behavior is the actions that determine social reactions to the desires and benefits of others.
	11. Culture marks the prevailing moral values into its members and forms the character of everyone as well.
	12. American psychologist Baring presented the theory on the stages of moral development.
	13. Theory on the stages of moral development was presented by Lawrence Kohleerg an American psychologist.

	14. Laws and rules and standards of attitude and behavior are set promulgated by the community to promote that relationship that binds them together as a people.
	15. Influence of culture in moral development is best seen in terms of relational.

Summary

Culture is the customary beliefs, social forms, and material traits of a racial, religious, or social group. It is also the characteristic features of everyday existence shared by people in a place or time.

Moral development refers to the “process through which a human person gains his or her beliefs, skills and dispositions that makes him or her morally mature person.”

Cultural relativism refers to not judging a culture to our own standards of what is right or wrong, strange, or normal. Instead, we should try to understand cultural practices of other groups in its own cultural context.

Filipino’s understanding of moral behavior and ethics is grounded on two notions in our culture. The first one is loób, which is better translated as ‘relational will’, and the second is kapwa, which is understood as ‘together with the person’.

Eastern influence gave us the personal and family honor that we valued, as well as dignity and pride. Western influence gave us a systematic education and form of government. But aside from that, we highly value families and kinship and make great sacrifices to educate our children.

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MODULE 7 Deontology

Introduction

Kant stresses that only if the state gives and enhances constitutional rights, laws and entitlements can a society act politically in relation to the state. As Kant teaches, these "righteous laws" are based on 3 logical concepts:

- The rights, as an
- entity, of each member of society
- As a matter, the equality of each member of society with one another ➢ The rights of every member of the commonwealth as an individual.

Kant argues that these principles are vital not only for the development of "righteous laws" but also for the functioning of the state, because without the consent of the people, a state will not exist, so rights are necessary within states to maintain the state's people's approval. The first concept upon which "righteous laws" are based is based on the notion of citizens' "freedom." The independence of individuals is important because it is not appropriate for the state or commonwealth to govern the lives of individuals. It would take on the role of a 'fatherly government' if it did so.

Learning Outcomes

At the end of this module, students should be able to:

1. Evaluate the theory of Kant; and
2. Differentiate different kinds of rights;

Lesson 1. Kant and Right Theories

Kant’s Ethics

The development of moral character has been the subject of philosophical and psychological investigation since Aristotle theorized three levels of moral character development: an ethics of fear, an ethics of shame, an ethics of wisdom (Kraut, 2001) The Good Will

"The only thing that is "good without qualification," is a "Good Will. Other "goods" may be listed, such as intelligence and health. Since it is "the will to obey the Moral Rule," good will is good (McLeod, 2021).

The Notion of Duty (McLeod, 2021)

Regarding duty-based or deontological ethics

Deontology means ethics based on obligation, not the repercussions of their acts, which are concerned with what people do. It has the connotations that follow:

- Do the right thing.
- Do it because it’s the right thing to do.
- Don’t do wrong things.
- Avoid them because they are wrong.

An action on this ethical practice cannot be justified by showing that it has had positive impacts, which is why it is sometimes called 'non-consequentialist.' From the word deon, meaning 'duty' in Greek, comes the word 'deontological.'

Ethics based on duty is typically what people speak about when they refer to the 'the thing' theory. In addition, duty-based ethics teaches that because of the kinds of things they are, certain actions are right or wrong, and people have a duty to behave accordingly, regardless of the good or bad consequences that may be created.

It is emphasized that "every form of conduct is wrong or right in itself, irrespective of the consequences." In this case, Deontologists use a universe of moral rules, such as:

- It is wrong to kill innocent people
- It is wrong to steal
- It
- is wrong to tell lies
- It is right to keep promises

Even if it causes a bad outcome, someone driven by duty-based ethics should "do the right thing," so if they do morally right actions, a person who considers himself a deontologist is doing something good.

> "A distinction exists between "I want" (self-interest) and "I should (ethics). 'Moral actions' are not 'spontaneous' actions. That is, if I see someone in need of help, I may be willing to 'look the other way' and attend to my own busy day, but I would recognize that I should assist in some way.
>
> For example, an elderly woman falls and bleeds badly... I may be on my way to work, but I agree that I should at least seek help and call 911.

There is a DISTINCTION within Duty itself that can still be made, taking into account only those actions that seem to be good (as opposed to actions that we usually recognize as incorrect),: ACTS IN MERE ACCORDANCE (conformity) WITH duty and actions performed FROM A SENSE OF duty.

The Nature of Imperatives (McLeod, 2020)

Commands are prerequisites. Of the commands, there are the ones that command hypothetically and the ones that command categorically.

<u>Hypothetical Imperatives</u> If you want 'a,' then the overall procedure is YOU Need TO DO 'B.': For starters, if you want to be an Olympic swimmer, you should go swimming every day. The 'thinking' is influenced by our prospects & desires-our 'goals' in these hypothetical imperatives. So, if you do not want to be an Olympic swimmer, you don't need to go swimming every day. Our urgencies are ultimately based on SELF-INTEREST.

A <u>Categorical Imperative</u> The complete form is: DO 'A' (i.e., it is UNCONDITIONED). For Kant, there is only one imperative that unconditionally commands us, and that is the Moral Law: "Act only on that principle by which you can make it a universal law at the same time."

Nevertheless, this single categorical imperative has three designs (the first two of which are): First Formulation: "Act as if the principle of your conduct is to safeguard a fundamental law of nature through your will" Second wording: "Act in such a way that you always see humankind as a target and never as just a means, whether you are yourself or anyone else's"

Kant's examples as a way of validating the use of these inventions in the real state of affairs follow the classes of duties used at that time. The four types of responsibilities are divided into: self-responsibility (perfect: self-protection, imperfect: self-cultivation) and tasks towards others (Perfect: Strict Duty, Imperfect: Charity).

The examples of Kant are (1) Suicide, (2) Promise-breaking, (3) Squandering Talents, (4) According to these types of tasks, helping others.

The theory of Kant is an example of a moral theory of deontology, and according to these theories, the correctness or wrongness of actions depends not on their effects, but on whether our mission is fulfilled. Kant believed there was a supreme morality concept, and he referred to it as The Categorical Imperative.

What is right according to Kant? (McLeod, 2020)

Thus, the "simple rule of law" provided by Kant is that "any action is right if it is capable of coexisting with the freedom of all under universal law, or if the freedom of option of all is capable of coexisting with the freedom of all under universal law."
Kantian ethics refers to Immanuel Kant, a German philosopher's deontological ethical philosophy, founded on the premise that: "It is hard to think of something in or even outside the world that could be regarded as good, except good will, without restriction."

As a consequence of Enlightenment rationalism, the philosophy was established, arguing that an action can only be good if its maxim - the concept behind it - is an obligation to the moral law, which emerges from the actor's sense of duty. Which means that agency is known in social science as the ability of people to act independently and to make their own free choices.

The categorical imperative, which works on all persons, regardless of their preferences or desires, is fundamental to Kant's construction of moral law. The categorical imperative was formulated by Kant in different ways. His universalizability theory implies that, in order for an action

to be acceptable, it must be possible to extend it to all individuals without the occurrence of a contradiction.

The second part of the categorical imperative, the formulation of humanity by Kant, notes that as an end in itself, humans are expected never to regard others merely as a means to an end, but rather as ends in themselves.

For a will to be successful, according to the consequentialist, it is for it to strive at behaving in order to generate the best possible state of affairs. In this sense, the consequentialist assumes that states of affairs are "good without qualification"; good wills are defined in terms of the intention to create good states of affairs.

According to Kant, this view gets things exactly backwards:

According to what it influences or accomplishes, a good will is not good because of its fitness to achieve any proposed end: it is good by its willingness alone, that is, good in itself.If it still accomplishes nothing by its utmost effort, and only good will is left (not, of course, as a mere desire, but as the straining of all means to the degree that they are under our control); even then it will still shine as a diamond for its own sake as something that has its full meaning in itself. Its use is a good will which choose a certain will, because it is the action dictated by duty. Therefore, to grasp his view of good will, we need to know what obligation is.

Different kinds of imperatives exist. Some of these are hypothetical imperatives: they claim that if we are interested in achieving some end, which Kant calls a 'condition', we should do suchand-such. A good example of a hypothetical necessity might be that you should go to the dining hall tonight because you are involved in eating dinner at the end of the day.

“There is an imperative that instantly enjoins this action without being based on, and influenced by, any other goal to be accomplished by a certain line of behavior. This is a categorical imperative.”

Explicitly, the categorical imperative specifies what you should do, period, not what you should do, given any other interest. Kant notes that there is only one categorical imperative: there is also

only one categorical imperative, and it is this: "Act only on the principle by which you can simultaneously make it a universal law."

Kant calls this the formula of universal law (McLeod, 2013)

Your principle is your justification for taking an action. What Kant is saying here is that morality's sole order is to act only on maxims that are such that one can act from that maxim while still having to act from that maxim that everyone else can act as well. This is what it means to "become a universal law" with a principle. In the jurisprudential reflection of our time, according to George P. Fletcher, the relationship between law and morality has emerged as the central issue.

It is probable that valid laws are unethical or unfair. "Occasionally we hear the riposte when courts respond to crucial demands for moral reform, as they have in desegregation decisions: "You do not legislate morality. Innovative lawyers see this point as clearly misleading.

The rule, at least on traditional "morality," has a continuing effect on "morality." Prohibiting racial discrimination impacts societal attitudes and consequently reshapes traditional sensibilities as to whether sitting next to a black lunch counter is offensive.

The law can also inform conceptions of "absolute" moral truth: insofar as "moral" understandings are traditionally based; the law is one element influencing individuals in their declarations of fundamental morality. The argument that morality cannot be legislated must be expressed in a separate view of laws, values, and their associations. In the context of Kant's work this other way of thinking about law and morality is to be found. An elaboration of Kantian thinking allows one to understand why stating that the obligation is moral is an argument not for, but against a legal duty.

The teaching of Kant also helps one to fathom the argument that morality cannot be legislated. Although law and morality are today viewed as intersecting sets of rules and rights by the dominant view, the Kantian view considers the two as distinct and non-intersecting. The moral does not ask for legal participation, and the moral should not be decided by the legal one.

We have to explain, in turn, Kant's concepts of law and morality to understand how the Kantan understanding of law and morality can be so different from traditional views. A conceptual

relation between the two will be the final concern of our inquiry. We will illustrate the probability of conflicting, converging or, at least, intersecting sets of law and morality.

Extreme problems are present. Legal academics seeking alternatives to utilitarianism are moving vaguely to Kant's categorical imperative of inspiration. Yet Kant's precise views on the law and the relationship between law and morality have gained far less coverage than they deserve. Of course, in the twentieth century legal debate, Kant can't have the last word about how to use his thinking, but at least he should have the first word. In this article, my intention is simply to address Kant's writing and implicit thinking on these topics.

The presentation proceeds first by analyzing the principle of law by Kant, then turns to the theory of morality, then to the points of distinction between law and morality, and finally to the question if Kant's law and morality constitute elements of a single theory of freedom.

Kant’s Theory of Law (McLeod, 2020)

The key word in Kant's thought about law and morality is equality. For the purposes of aw, external independence is the relevant type of freedom, freedom to act on one's own choices. The dictates of reason should not be reflected by these choices.These do not need to be morally sound decisions. They are subjectively contingent judgments, representing concrete people's divergent intentions. They are embodied in transactions forming private legal relationships, such as the purchase and transfer of land, contracts and wills, marriage and household formation. The role of law is to reconcile these decisions in such a way that a maximum domain of external freedom is guaranteed to each person. If the aim of the lawful structure is to protect the exercise of external freedom, then the law can be described as the "collection of circumstances under which the choices of each person can be united under a common law of freedom with the choices of others."

The legal system's adopted laws are those conditions that guarantee maximum choice. The choices that are at stake here represent more than needs, hopes or desires. They are the manifestations of freedom in the external world's acquisition of property or having control over another's power of choice in a contractual relationship. There are declarations of liberty that may conflict with the choices of others. The role of the law is to ensure that the choices of each person can be reconciled with the choices of others.

The negative effect of this theory of law is that in legal transactions, private motives are negligible. Instead of the purpose of the transaction, the emphasis is on the form. As an expression of their equality, only if their private contractual reasons are insignificant will two persons agree to the same contract.

The goal of private law is to ensure that, within the context of rules protecting our external freedom to participate in transactions of the same ostensible form, I can follow my purposes and others, all of them. This legal theory is actually an ideal. At no point in a jurisdiction is it an account of the law in practice. Significantly, Kant analyzes private law before public law; and within private law, the argument proceeds from property to family relations. The role of property as the primary legal relationship awaits an adequate explanation.

KANT'S MORAL THEORY (McLeod, 2020)

In Kant's moral philosophy, equality is also the core principle. However, liberty in moral behavior is internal rather than external. While external freedom emerges from the absence of physical constraint, the absence of sensual interference with the dictates of reason derives from internal freedom, at least negatively defined.

While we specifically experience external freedom, we do not experience the freedom defined in the same manner as the absence of sensual interference with the dictates of reason. Kant claims that we have inner freedom to behave solely on the basis of reason. It is an ideal of human nature, since in relations between people, friendship and loyalty stand as an ideal.' As a consequence of the gradual abstraction of our actions from the influence of inclinations and senses, it is possible to imagine freedom. As expressed in human behavior, internal independence is but one of a number of analogous manifestations of the emanations of practical rationality or pure reason. The concepts of autonomy, will, noumenal-all of these words represent the same side of the simplistic dichotomy in Kant's philosophy. The ideas of heteronomy, disposition and phenomenal subordination catch the other side of the dichotomy.

This second set of words invokes the reality as we comprehend it by our senses; the former, a reality beyond the senses. In the first part of the Foundations of the Existentialism of Morality, Kant attempts to develop the statement that moral behavior must be an expression of the theoretical domain. Later, it will clarified why Kant emphasizes the relationship between morality and the noumenal, but first, I will briefly trace the transition from these assumptions to his

famous theory of moral conduct, the categorical imperative-the principle that one should not act on a maxim unless one can be a universal rule of that maxim.

Kant claims that good will is the only thing that is really good. Correct conduct is merely adherence to an action to the law or principle that is justified. There is free will for all human beings, and we act morally, and we have to be free in this case. Under the scope of synthetic a priori, we do not adhere to predetermined rules. Nevertheless, we must act according to those laws, otherwise our actions are unintentional and without intent. Rational beings must determine for themselves a set of rules by which they should act.

Those rules are determined by practice. The synthetic a priori must be determined by the human being, the substantive rules that can be applied before experience. Moral value involves the behavior of an individual deciding their moral value, considering the following factors, such as context, fundamental concept, motivation, implications and perception.

Moral importance implies that only if one is motivated by morality will one have moral value. If he violates the rights of others, a person is guilty by law; if he just thinks about doing so, he is guilty of ethics.

For the first time, Kant introduced to the heart of moral philosophy the notion of reverence. A will is the requisite object of reverence. It takes problems related to will, intellect, and freedom to value an individual. He recognizes that individuals give themselves to their own regulations as autonomous earning. An individual has his own rules; in their code, it is not acceptable to disrespect their laws.

Lesson 2. Differentiate Kinds of Right (McLeod, 2020)

What is right according to Kant?

In general, Kant's theory of rights is defined in precisely those terms: the concept of justice is a strict logical inference from moral law, and since moral law is essentially universal and eternal, the principle of justice is as necessary and fixed as any empirical collection of human rights.
Freedom is not absolute. Within a state, freedoms are circumscribed by laws. It is necessary to place constraints on freedom for the sake of citizens as well as for the sake of the state. We surrender certain freedoms to attain more freedom. When considering human liberty, Kant suggests, we must distinguish between the "internal" and "external" uses of choice.

Liberty captures virtue (first-personal ethics) in internal uses of choice, meaning acting on universalizable maxims from the motivation of duty (virtuous internal freedom), while liberty captures right (justice) in external uses of choice, meaning contact in the world that is compatible with upholding the intrinsic right of each other to freedom (rightful external freedom).

Right and Privacy

Therefore, the primary distinction between the theory and the ideal is that the more complete legal-political ideal incorporates the moral psychological and anthropological truth represented by us, social human beings living in particular communities in various backgrounds and cultures.

The related concepts of innate, private and public law are correspondingly included in the Kant-based proposal for the legal idea of the right to privacy, while the more complete, legal political ideal would incorporate the contingent moral, psychological and anthropological concerns of human nature.

This helps one to see how the general legal definition of the right to privacy can be seen as a cluster of legal rights that constitute the minimally just state (innate, private, and public law), whereas the full legal-political ideal of the right to privacy demonstrates ways of doing well.

Not only do just communities treat breaches of privacy show ways in which respectable, just societies not only treat breaches of privacy show ways in which nice, just societies not only treat breaches of privacy as particularly egregious, but often strive to better themselves through becoming more and more willing to preserve the right to privacy of — individuals consistently.

The judicial theory of Kant's philosophy of the right to privacy has been defined in its purest form in the "Doctrine of law" in the metaphysics of morality, which is "the inherent right to freedom" and its corresponding "duty of legitimate honor. “Our inherent right to citizenship is our right to "freedom from being limited by another's choice." As long as we exercise our liberty, it can coexist with someone else's freedom in accordance with a universal law. Our obligation of rightful honor" consists in claiming in relation to others one's worth as a person."

Three (3) Kinds of Rights Protected by the Laws of Freedom:

In order to create a situation in which our inherent right to freedom is realized and protected, there are three (3) kinds of rights required.

1. Analytically connected to our fundamental right to liberty [rights to our bodies, to think and expression, and to honor], human rights

2. Individual rights are synthetically connected to our universal right to liberty, i.e. to private rights gained through acts of appropriation and security [private property rights, contract rights or, in other terms, status rights] between private individuals.
3. People have public privileges that are structural legal declarations about or by their public authorities (rather than against one another as private persons).
4. Finally, Kant claims that it is difficult to interact correctly in a pre-state ('the state of nature'); having a public agency that has a monopoly of law-governed coercion is constitutive of legitimate relationships because it is the means by which we can correctly address (systemic) relationship issues that we as private individuals cannot solve.

The object of this section is to outline the judicial concept of a right to privacy, which, in order to produce this (cluster) right, is interpreted as a variation of the above principles of law.

- Private Property
- Contract Right
- Status Right protects marriage, parent-child relationships and family servant relationships.

The principles of private law set the abstract limits of my rightful choices in all cases, and the underlying legal framework of private property, contract, and status law defines how laws are then enforced in individual cases by the courts, and upholds these laws by the state's executive powers. Only states, by retaining the rule of private law in the region, allow their people's right to make external use of choice in respect of things that are distinct from them. By facilitating interaction with a legal-political structure of enforceable limits based on our fundamental rights to each other as individuals capable of external freedom, they enable individuals to live their own lives. The development of private legal spheres, spheres that allow privacy, is thus constitutive of the laws of private property, contracts, and status.

Lastly, according to Kant, there are public rights, which are legal claims that people hold against or consider private institutions to be public bodies, but not directly against each other. This is used by Kantians to analyze systematic rights issues, such as whether the state can and should be responsible for the problems of poverty, housing, the environment, and the financial system. In addition, in order to enable systems based on our exercise of independence, such as interaction with means of access in an economy, these systems must also be controlled by public authorities

in order to ensure that such (coercive) dependence does not depend on the arbitrary choices of other private individuals, but on public law.

The general principle is that those entrusted with public authority must strive to ensure that legal-political institutions operate in such a way that no person finds himself in a situation where another private citizen is subject to a decision as to the possibility of exercising his or her liberty; his or her sole (coercive) public dependence is at least equal or legitimate.

Consequently, since public reasoning focuses on legal-political principles (laws and policies) aimed at preserving the right of every person to freedom, public authority does not argue in the same way as a private individual (even a supremely virtuous one).We can see how the bare bones of privacy, the legal word, are a cluster or a combination of innate, private and public law by adding the above-mentioned rights.

The account that describes the fundamental ways in which laws of public liberty enable finite beings (in space and time) to participate lawfully in the universe, that is, by defining the legal-political boundaries around each one that are guaranteed by state coercion. When interacting, this cluster of rights helps them to understand legitimate freedom in their external uses of option and ensures that each of us always has legal access to our own areas. In addition, it is evident that this judicial definition of privacy, a collection of values maintained by every state that is minimally just, implies considerable legal security of privacy by how laws establish innate, private, and public law.

Therefore, if this minimal legal-political structure is not in effect, then in these respects, we are still not in a civil situation. In this regard, it is important to remember that much of history and contemporary life is characterized to a limited extent by the inability of states to preserve such a basic legal structure for some of their people. We have some concerns about the actual (de facto, present) failure of states to operate as public authorities by protecting the inherent rights of all individuals to physical integrity and speech; the rights to privacy, contract rights, and standing rights gained; and statutory (public) rights.

And for all its people, no modern or historical state has or does genuinely protect these rights equally. The backgrounds of different religious, cultural, sexual, gendered, or racialized minorities, women, or people with disabilities are characterized by a denial of the judicial right to privacy, either formally or as a matter of legitimate political procedure, by denying them any or all these rights.For much of history, for example, women have been denied the right to obtain private property, sign contracts, physical dignity, or work in a place where they can acquire a home of their own (they only have access to shared homes through their own choices) (they only have access to shared homes through the choices of others).

To the degree that these are the lives that some individuals are forced to live, the extent to which these individuals determine whether or not to put up with it for prudential purposes is a decision that each individual must own. he choice in either direction is not one that can be considered to be morally justifiable (let alone emotionally healthy) under circumstances where a path to challenge injustices is de jure or practically impossible, and the fact that they are in this impossible role is because the state apparatus does not work as a fully public authority (yet).

Assessment Task 7-1

True or False

Instruction: Write true if the statement is correct and write false if it is not correct.

1. The binding force of obligation is relative.
2. The moral law is binding as long as the person has the faculty of reason.
3. Kant became a Key thinker in moral reflection.
4. Moral conviction is believing one's duty to do the regent thing.
5. Deontology is English word meaning doing nothing.
6. Human being have a faculty as an animal.
7. Deontology refers to the study of duty and obligation.
8. Immanuel Kant is a German Enlightenment philosopher.
9. Moral theory that evaluate actions that are done is called deontology.
10. Faculty according to Kant is the capacity of teach.
11. Frederick Kant works on moral philosophy. Grounded towards Metaphysics of Morals.
12. Faculty is an inherent mental capacity.
13. The human beings have the faculty called rational will.
14. Agency is the ability of a person to act based on his intentions and mental states.
15. Frederick claim that the property of the rational will is autonomy.
16. Heteronomy is the opposite of deontology.
17. Combination of autos and nomos means autonomy.
18. Heteros and nomos when combined means heteronomy.
19. Moral good refers to moral obligation.
20. Moral obligation according to Plato is universal.

21. Frederick Kant states that we must formulate an action as a maxim, which he define as a subjective principle of action.
22. A hypothetical imperative states that a certain thing must be done, if something else which is willed is to be attained.
23. Ten Commandments of the Judio-Christian is a clear example of a substantive moral theory.
24. Act only according to such a maxim by which you can at once will that it become a universal law.
25. The mother makes decision on behalf of and in the interest of the children.
26. Will is based on one reason when he became matured.
27. Deontology is based on the light of one's own reason when maturity and rational capacity take hold of a person's decision-making.
28. Kant states that we should act according to a maximum by which we can at once will that it become a universal law.
29. Kant stresses that only if the state gives and in chances constitutional rights, loves and entitlements can a society act politically in relation to the state.
30. Any member of the society has always the greater power to grant right.

Assessment Task 7-2

Multiple Choice. Instruction: Select the correct answer on each question.

1. Which is necessary to maintain the state's peoples' approval?
   a. Right
   b. Will
   c. Choice
   d. Law
   e. Moral

2. Which has greater power to grant rights?
   a. School

b. Government
c. Family
d. Society
e. Church

3. What cornerstone from which rights for any human being derive?
    a. Freedom
    b. Will
    c. Equality
    d. Righteous
    e. Guidance

4. Which is exempted from equality as the founder of the state?
    a. Follower
    b. Ambition
    c. Right
    d. Ruler
    e. Will

5. Which is necessary for a common basis for the life of everyone which in the state?
    a. Righteousness
    b. Freedom
    c. Moral
    d. Will
    e. Equality

6. What is Kant's Judicial theory to privacy?
    a. Doctrine of Freedom
    b. Doctrine of Nature
    c. Doctrine of Duty
    d. Doctrine of Morality
    e. Doctrine of Law

7. What is the requisite object of reverence?
    a. Moral
    b. Law
    c. Freedom
    d. Will
    e. Right

8. What is the only thing that is really good according to Kant?
    a. Good thing
    b. Good price
    c. Good will
    d. Good thinking
    e. Good success

9. What influences individuals in their declarations of fundamental morality?
    a. Will
    b. Law
    c. Success
    d. Freedom
    e. Right

10. Which ethics based on obligation not the repercussions of their acts?
    a. Deontology
    b. Freedom
    c. Right
    d. Will
    e. Law

Assessment Task 7-3

Matching Type

Instruction: Match the statement under letter A to letter B. Write only the letter of the correct answer.

A	B
1. Autonomy	
2. Heteronomy	
3. Opposite of heteronomy	a. Deon
4. Ethics based on obligation	b. Deontology
5. Meaning duty	c. Autonomy
6. Not spontaneous actions	d. Other law
7. Ability of people to act independently	e. Self-law
8. Works on all persons regardless of their preferences	f. Moral action
	g. Agency
9. Intention to create good states of affairs.	h. Categorical imperative
	i. Good will
10. Act on one's own choices	j. Freedom
	k. Emotional actions

Summary

Therefore, Kant argues that the protection of individuals can take place only within a patriotic government and there would be space for individual rights that are also sufficient for the government's reach.

The dignity of every member of society against one another is the second logical concept by which rights are created. Under the leadership of the state ruler, equality within society is necessary for a common basis for the life of everyone within the state.

The ruler (president/king) is exempted from this equality as the founder of the commonwealth or state, since he alone has the responsibility to ensure that the concept of equality is achieved by legislation.

In the state, everybody needs to have the same rights so that laws can be evaluated and

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